SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 2, Honorable Amber Rosen, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

LINES 2-5	23PR194562 (lead case, consolidated with 25PR200738) 25PR199269	THE DAVID B. COSTA LIVING TRUST, dated August 17, 2018 THE ESTATE OF DAVID COSTA	Click or scroll to lines 2-5 for tentative ruling. Court will issue the final order.
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LINE 29			
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Calendar line 1
Case Name: Conservatorship of Ligia Oceguera
Case No.: 21PR190362

INTRODUCTION

Ligia Irazema Oceguera Garcia ("Conservatee") was severely injured in an accident and rendered incapacitated. In 2021, her husband Cesar Oceguera Varela ("Petitioner") petitioned to be named her conservator and the Santa Clara County Superior Court issued an order granting that petition. Thereafter, Conservatee and Petitioner accepted a settlement of litigation stemming from Conservatee's injuries. The settlement was approved by a court in Nevada. The Nevada court also ordered that Petitioner could set up a special needs trust for Conservatee with the proceeds of the settlement. On April 14, 2026, Petitioner filed a petition for substituted judgment in this court seeking to establish the special needs trust.

Currently before the court is Petitioner's motion to file all documents relating to his petition for substituted judgment under seal. No opposition has been filed.

DISCUSSION

I. Legal Background

"Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c).) However, "[t]he rules [Cal. Rules of Court, rule 2.550 and 2.551] 'recognize the First Amendment right of access to documents used at trial or as a basis of adjudication.' [Citation.]" (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 84 (*Mercury Interactive*).)

"The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d), formatting omitted.)

"Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests." (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*In re Providian*).)

Where some material within a document warrants sealing, but other material does not, the document should be edited or redacted if possible, to accommodate both the moving party's overriding interest and the strong presumption in favor of public access. (Cal. Rules of Court, rule 2.550(d)(4), (d)(5).) In such a case, the moving party should take a line-by-line approach to the information in the document, rather than framing the issue to the court on an all-or-nothing basis. (*In re Providian*, *supra*, 96 Cal.App.4th at p. 309.)

"A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties." (Cal. Rules of Court, rule 2.551(a).)

II. Merits of the Motion

At the outset, the court notes that Petitioner's motion is styled as a motion to file the entire action under seal. However, Petitioner clarifies that he is only seeking to seal documents relating to his petition for substitute judgment and not any documents previously filed under this docket number or any documents unrelated to the petition to be filed under this docket number in the future.

Petitioner contends that the documents must be filed under seal because they refer to a confidential settlement agreement approved by a Nevada court and the Nevada court has already ordered similar items sealed. Petitioner provides a copy of his motion to approve settlement agreement, which contained a request to seal. (See Declaration of Ian M. Sharon, Ex. A, p. 5.) In that motion, he requested that the court seal the motion itself and any related documents be sealed pursuant to rule 3 of the Nevada Rules for Sealing and Redacting Court Records ("SRCR").[1] (*Id.* at Ex. A, p. 5.) The Nevada court granted the motion. (*Id.* at Ex. B.) But, the Nevada court's order did not require that all items relating to the settlement agreement in any court be filed under seal and its order is not binding on this court. (See *Universal City Studios*, *supra*, 110 Cal.App.4th 1273, 1285 [sealing orders by other courts that did not purport to bind reviewing court did not require reviewing court to seal similar information].)

Nonetheless, Petitioner contends that the settlement agreement was confidential. A "contractual obligation not to disclose can constitute an overriding interest within the meaning of" rule 2.551. (*Universal City Studios*, *supra*, 110 Cal.App.4th at p. 1283 [discussing predecessor to rule 2.551].) For the purposes of the overriding interest requirement, the party moving to seal must not only identify an overriding interest but also establish a substantial probability that the interest will be prejudiced absent sealing. (*Ibid.*) Here, that requirement is met because the Nevada court ordered that the motion to approve settlement agreement and related documents be sealed. Moreover, Petitioner has appropriately filed the memorandum of

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[1] That section provides, in pertinent part, The court may order the court files and records, or any part thereof, in a civil action to be sealed or redacted, provided the court makes and enters written findings that the specific sealing or redaction is justified by identified compelling privacy or safety interests that outweigh the public interest in access to the court record. The parties' agreement alone does not constitute a sufficient basis for the court to seal or redact court records. The public interest in privacy or safety interests that outweigh the public interest in open court records include findings that: . . . The sealing or redaction is of the confidential terms of a settlement agreement of the parties[.]" (SRCR 3(4)(e).)

points and authorities in support of this motion and the petition for substituted judgment conditionally under seal. Accordingly, the court finds that there is an overriding interest in protecting the confidentiality of the settlement agreement, that interest supports sealing the record, and that there is a substantial likelihood of prejudice to the interest if sealing is not ordered.

As to the requirements that the proposed sealing be narrowly tailored and that no less restrictive means exist to protect the overriding interest, the court notes that Petitioner is asking to file both documents he has already submitted to the court and future documents under seal. He contends that the redactions are narrowly tailored because he is not seeking to seal documents unrelated to the petition for substituted judgment. The court rejects this argument. Taken to its logical conclusion, accepting Petitioner's argument would mean that he could file entire documents simply referring to the petition for substituted judgment under seal without the need for court examination of the documents. Because court records are presumptively open to the public and Rules of Court, rule 2.550(d) requires that the court make express factual findings, including that the proposed redactions are narrowly tailored, as to each record. (Cal. Rules of Court, rule 2.550(c) [court documents are presumptively public] & (d) ["The court may order that *a record* be filed under seal only if it expressly finds facts that establish: [required factual findings]."

As to the documents that have been conditionally filed under seal, the court has examined them and finds the redactions narrowly tailored. In the future, however, the court will not consider a motion like this where petitioner has failed to explain in the memorandum what is redacted or why or how it meets the standard for sealing. Because the court cannot make such a determination as to documents that could be filed in the future, that request is denied. Accordingly, the motion to seal is GRANTED IN PART as to the petition for substituted judgment filed April 14, 2026 and the memorandum of points and authorities in support of the motion to seal also filed April 14, 2026. To the extent Petitioner wishes to file any future documents under seal, he must make a separate noticed motion to do so.

CONCLUSION

The motion is GRANTED IN PART. The petition for substituted judgment filed April 14, 2026 and the memorandum of points and authorities in support of the motion to seal also filed April 14, 2026 may be filed under seal. The motion is DENIED to the extent it seeks an order that future documents may be filed under seal.

Calendar line 2

Case Name: THE DAVID B. COSTA LIVING TRUST, dated August 17, 2018
Case No.: 23PR194562 (lead case, consolidated with 25PR200738)

Case Name: THE ESTATE OF DAVID COSTA
Case No.: 25PR199269

INTRODUCTION

On April 19, 2023, the Public Guardian filed an ex parte petition for appointment of successor trustee to the David B. Costa Living Trust in docket 23PR194562. The ex parte petition asserted that David Costa ("Decedent") was conserved and could not serve as the trustee. The court appointed Ryan Marshall Tanaka ("Respondent") as successor trustee.

On August 12, 2025, after Decedent's death, Jialing Wang ("Petitioner"), Decedent's surviving spouse, filed a petition for accounting, to invalidate trust, to remove trustee, and for redress of breach of trust ("Petition") related to the David B. Costa Living Trust. The Petition was assigned docket 25PR200738. Petitioner alleges that Respondent Tanaka and Philemon Hyunwok Kang ("Kang"), Decedent's friends, committed elder abuse against both Decedent and Petitioner and unduly influenced Decedent to modify his trust.

On December 3, 2025, dockets 23PR194562 and 25PR200738 were consolidated with docket 23PR194562 designated as the lead case. On January 29, 2026, Petitioner filed an amended Petition in docket 23PR194562 ("Amended Petition").

On February 19, 2025, in docket 25PR199269, Respondent filed a petition for probate of Decedent's estate, asserting that Decedent died with a will and seeking appointment as personal administrator. Letters of administration issued on April 14, 2025. On November 20, 2025, Respondent filed a petition for orders (1) confirming trust property, (2) confirming breach of fiduciary duty, and (3) compelling accountings. On January 29, 2026, Petitioner filed an objection to the November 20, 2025 petition ("Objection").

Currently before the court are Respondent's demurrer and motion to strike targeting the Amended Petition in docket 23PR194562. Also before the court are Respondent's demurrer and motion to strike targeting the Objection in docket 25PR199269. Petitioner has opposed all four motions. Respondent filed a reply to the opposition to the demurrer in docket 23PR194562 only. The court continued the hearing on all four motions from April 16, 2026 to May 28, 2026 so that they could be heard together with a demurrer and motion to strike filed by Kang.

Also before the court are a demurrer and motion to strike filed by Kang in docket 23PR194562 targeting the Amended Petition. The demurrer and motion to strike are unopposed.

DISCUSSION

Legal Background

A. Demurrer

A demurrer may be utilized by "[t]he party against whom a complaint [ ] has been filed" to object to the legal sufficiency of the pleading as a whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)[1] The court in ruling on a demurrer treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a demurrer, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to a complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

B. Motion to Strike

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (§ 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (§ 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (§ 437, subd. (a).) The court's decision to strike the petition pursuant to section 436 is discretionary. (See § 436 ["The court may . . .strike"]; see also *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429 [motion to strike is addressed to the sound discretion of the court].) A motion to strike should be applied cautiously and sparingly because it is used to strike substantive defects. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

Respondent's Demurrer and Motion to Strike Amended Petition in Docket 23PR194562

A. Respondent's Request for Judicial Notice

Respondent requested judicial notice of 17 items in support of both his demurrer and his motion to strike in docket 23PR194562. The request is GRANTED as to the court documents with the caveat that, while the court is free to take judicial notice of the existence of a document in a court file, it may not take judicial notice of the truth of hearsay statements contained therein. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; Evid. Code, § 452, subd. (d).) The request is also GRANTED as to the recorded recission deed and the marriage license. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549 ["The court may take judicial notice of recorded deeds."]; Evid. Code, § 452, subd. (c).) Finally, the court GRANTS judicial notice of Probate Code section 16061.8. (Evid. Code, § 452, subd. (a).)

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[1] All further undesignated statutory references are to the Code of Civil Procedure.

B. Demurrer

Respondent demurs to each cause of action in the Amended Petition on the grounds that they each fail to state sufficient facts and that they are uncertain.

At the outset, the court notes that the Amended Petition is not separated into traditional causes of action; instead, it contains headings that sometimes appear to correlate with specific causes of action and other times appears to correlate to the elements of a cause of action. The court will discuss the "causes of action" Respondent addresses below.

i. Financial Elder Abuse of Decedent[2]

As to the claim of financial elder abuse of Decedent, Respondent argues that Petitioner lacks standing to bring a financial elder abuse claim on behalf of Decedent; that she fails to allege a taking, appropriation, or retention of a benefit by Respondent; that no ultimate facts regarding undue influence or active procurement by Respondent are alleged; and the Amended Petition pleads no damages suffered by Decedent.

Respondent first contends that Petitioner lacks standing or fails to establish that she has standing to bring this claim.

> (1) Subject to paragraph (2) and subdivision (e), after the death of the elder or dependent adult, the right to commence or maintain an action shall pass to the personal representative of the decedent. If there is no personal representative, the right to commence or maintain an action shall pass to any of the following, if the requirements of Section 377.32 of the Code of Civil Procedure are met:
>
> (A) An intestate heir whose interest is affected by the action.
>
> (B) The decedent's successor in interest, as defined in Section 377.11 of the Code of Civil Procedure.
>
> (C) An interested person, as defined in Section 48 of the Probate Code, as limited in this subparagraph. As used in this subparagraph, "an interested person" does not include a creditor or a person who has a claim against the estate and who is not an heir or beneficiary of the decedent's estate.
>
> (2) If the personal representative refuses to commence or maintain an action or if the personal representative's family or an affiliate, as those terms are defined in subdivision (c) of Section 1064 of the Probate Code, is alleged to have committed abuse of the elder or dependent adult, the persons described in subparagraphs (A), (B), and (C) of paragraph (1) shall have standing to commence or maintain an action for elder abuse. This paragraph does not require the court to resolve the merits of an elder abuse action for purposes of finding that a plaintiff who meets the qualifications of subparagraphs (A), (B), and (C) of paragraph (1) has standing to commence or maintain such an action.

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[2] The Amended Petition also appears to contain an undue influence cause of action that may be potentially separate from the financial elder abuse of Decedent claim. (See Amended Petition, pp. 5:6-9:8.) It is not clear whether this is meant to be a separate cause of action or part of the financial elder abuse of Petitioner cause of action. (See Amended Petition, § 22 [alleging that undue influence is a form of financial abuse].) The court requests that any second amended petition Petitioner may file clearly label each cause of action as such.

(Welf. & Inst. Code, § 15657.3, subd. (d).)

Here, Respondent is the current personal representative who would ordinarily be the one tasked with bringing an elder abuse claim. But, because the claim is alleged against him, Welfare and Institutions Code section 15657, subdivision (d)(2) applies. The Amended Petition pleads that Petitioner is an interested person in that she is Decedent's surviving spouse and a beneficiary of the trust. (Amended Petition, ¶ 4.) Respondent argues that Petitioner does not plead that she complied with "the requirements of Section 377.32 of the Code of Civil Procedure[.]" (Welf. & Inst. Code, § 15657.3, subd. (d)(1).) Section 377.32 requires an affidavit containing certain specified information where one seeks to maintain a cause of action as a decedent's successor in interest. "Section 377.32, however, 'does not require that the affidavit be filed as a condition precedent to commencing or continuing the action.' [Citation.]" (*Aghaian v. Minassian* (2021) 64 Cal.App.5th 603, 614; accord *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 229.) Thus, failure to plead compliance with section 377.32 cannot render the Amended Petition subject to demurrer.

As to Respondent's argument that the cause of action fails to state in what manner the taking, appropriation of a benefit by Respondent occurred, "The [Elder Abuse] Act broadly defines financial abuse as occurring 'when a person or entity … [¶] … [t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder … for a wrongful use or with intent to defraud, or both' ([Welf. & Inst. Code,] § 15610.30, subd. (a)(1), italics added) or 'by undue influence.' (§ 15610.30, subd. (a)(3).) Further, a person or entity that assists in the foregoing conduct is also liable for elder abuse. (§ 15610.30, subd. (a)(2).)" (*Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 478.) Welfare and Institutions Code section 15610.30, subdivision (c) provides, "For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult." A taking can be adequately alleged where it is pled that the right of an elder to dispose of their real property as they see fit is encumbered. (*Bounds v. Superior Court*, *supra*, 229 Cal.App.4th at p. 483.)

Petitioner contends that the Amended Petition adequately pleads the same with the following allegations: Respondent and Philemon Kang (1) took Decedent to banks and financial institutions despite his inability to speak, write, or communicate independently, and directed transactions in his name (Amended Petition, Page 3, Paragraph 12; Page 6, Paragraph 27; Page 7, Paragraph 28; Page 9, Paragraph 36); (2) implemented a fee-payment scheme in which they paid themselves from Decedent's accounts (Amended Petition, Page 4, Paragraph 13); (3) arranged the sale of Decedent's real property through a personal associate, with Phil benefiting from the proceeds (Amended Petition, Page 7, Paragraph 29); and (4) procured the execution of the 2022 Restatement that transferred beneficial interests away from Petitioner and toward Respondents (Amended Petition, Page 8, Paragraphs 32-33)." (Opposition, pp. 5:23-6:3.)

While the court agrees with Petitioner that the specifics of every transaction need not be pled, an elder abuse cause of action is statutory and must be pled with greater particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 (*Covenant Care*).) Thus, the failure to differentiate which actions were committed by Respondent and which by Philemon Kang renders the cause of action subject to demurrer. Thus , the allegation that

Philemon Kang caused the sale of Decedent's real property, (see Amended Petition, § 33), with no allegations that Respondent aided and abetted him is insufficient to plead elder abuse on the part of Respondent. Petitioner also points to the allegation that Respondents caused Decedent to change his estate plan to benefit Respondents and paid themselves "through a compensation scheme tied to Decedent's assets," (Amended Petition, ¶ 32), but that allegation is too general to adequately apprise Respondents of what actions they allegedly took or in what specific manner the taking occurred.

Further, the court agrees with Respondent that damages suffered by Decedent are inadequately pled. Notably, the allegation that Decedent changed his estate plan asserts that this was accomplished to the detriment of Petitioner herself, rather than Decedent. (See, e.g., Amended Petition, ¶ 32 ["Respondents also isolated Decedent from his wife and disregarded his longstanding commitments to her. Most critically, they initiated and procured changes to Decedent's estate plan that *eliminated Petitioner's rights and substituted arrangements that favored Respondents*, while simultaneously paying themselves through a self-devised compensation scheme tied to Decedent's assets."], italics added.)

The demurrer is SUSTAINED as to the cause of action for financial elder abuse of Decedent WITH 20 DAYS' LEAVE TO AMEND.

ii. Financial Elder Abuse of Petitioner

As to the claim of financial elder abuse of Petitioner, Respondent argues that it fails because Petitioner was not 65 years old at the relevant times, alleges no statutory taking of her property, relies on impermissible group pleading, and is barred to the extent it challenges restoration of the Dry Creek Property pursuant to a court-approved order.

As to the first contention, the Amended Petition does not plead Petitioner's age or date of birth. Respondent contends that Petitioner was born on August 27, 1958, based on the marriage license for her marriage to Decedent. Petitioner counters that some of the injuries she alleges happened after she turned 65. While that may be correct, Petitioner is required to plead the ultimate facts to establish entitlement to relief. To state a claim for financial elder abuse, a plaintiff must plead and prove the following: (1) the plaintiff was "elderly" within the meaning of the Elder Abuse Act (Welfare & Institutions Code § 15600, et seq.), i.e., 65 years of age or older; (2) the defendant took or retained the plaintiff's property with the intent to defraud the plaintiff, for a wrongful use, or by undue influence; (3) the plaintiff was harmed; and (4) the defendant's conduct was a substantial factor in causing in the plaintiff's harm. (See CACI No. 3100; Welf. & Inst. Code, § 15610.30.) Thus, Petitioner must plead that she was an elder within the meaning of the statute. As mentioned above, because a financial elder abuse cause of action is statutory, it must be pleaded with particularity. (*Covenant Care, supra,* 32 Cal.4th at p. 790.) Thus, merely stating that Petitioner was an elder is insufficient.

For the same reason, the court finds that the financial elder abuse cause of action relating to Petitioner is subject to demurrer due to the blurring of the allegations regarding actions taken by Respondent and those taken by Philemon Kang. However, the court rejects Respondent's argument that the Amended Petition fails to allege a statutory taking as to Petitioner. The Amended Petition alleges that Respondents' actions caused a deviation from Decedent's intended estate plan, to the detriment of Petitioner. (See Amended Petition, ¶¶ 32, 37.) Further, while Respondent argues that any rights Petitioner might have under the estate plan would only come into play after Decedent passed away, he cites no authority that a change to an estate plan to the detriment of a beneficiary, caused by undue influence or elder abuse, cannot constitute financial elder abuse of that beneficiary as a matter of law.

Respondent also contends that any claim Petitioner may make regarding Decedent's residence (the "Dry Creek Property") is barred because Petitioner agreed to a settlement by which a deed transferring the Dry Creek Property to her was voided. A demurrer does not lie to a portion of a cause of action. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.) Because this argument targets only a portion of a cause of action, it does not dispose of the entire cause of action, and therefore the demurrer cannot be sustained on this basis.

The demurrer is SUSTAINED as to the cause of action for elder abuse against Petitioner with 20 DAYS' LEAVE TO AMEND for the reasons discussed above.

iii. Intentional Interference with Expected Inheritance

Respondent contends that the intentional interference with expected inheritance ("IIEI") cause of action cannot lie because Petitioner has adequate remedies at probate. As explained in *Halperin v. Halperin* (2026) 118 Cal.App.5th 193, 199 (*Halperin*), "The tort of IIEI was first recognized by a California court in *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039 (*Beckwith*)." Under *Beckwith*, "a plaintiff cannot recover for IIEI if 'an adequate probate remedy exists.' " (*Halperin*, *supra*, 118 Cal.App.5th at p. 200, quoting *Beckwith*, *supra*, 205 Cal.App.4th at pp. 1056, 1058.) In *Halperin*, the Court of Appeal upheld the trial court's order sustaining a demurrer where the petitioner had standing to assert and did assert requests for relief in probate. (*Halperin*, *supra*, 118 Cal.App.5th at p. 201; see also, *Munn v. Briggs* (2010) 185 Cal.App.4th 578, 591 (*Munn*) [upholding order sustaining demurrer where petitioner had adequate remedy in probate].)

Here, Petitioner has standing in probate to challenge the 2022 restatement and she has done so. Petitioner argues that the availability of an adequate probate remedy turns on factual issues that cannot be resolved on a demurrer. She maintains that Respondent's defenses to her causes of action show that the demurrer should not be sustained. For example, she asserts that Respondent argues that her cause of action to invalidate the trust is barred by the statute of limitations, Probate Code section 16061.8, and by judicial estoppel. She maintains that, if such defenses were accepted, she would be foreclosed from recovery in probate.

Munn undercuts Petitioner's argument. In *Munn*, the Court of Appeal concluded that the tort of IIEI was unavailable because the petitioner could have but did not timely avail himself probate remedies. The court explained that the petitioner did not file an objection to the probate of a will before or at the hearing on the petition for probate, had failed to file a petition to revoke the will within 120 days of admission of the will as required by Probate Code section 8270, but instead filed a petition under the former safe harbor provisions for a determination that his proposed petition for IIEI would not constitute a will contest. (*Munn*, *supra*, 185 Cal.App.4th at p. 591.) The court rejected the petitioner's argument that the probate remedy was inadequate because the codicil he sought to challenge contained a no contest clause because to allow petitioners to use an IIEI cause of action to circumvent a no contest clause would violate the public policy behind no contest clauses as well as eliminate statutory will contests in cases involving no contest clauses. (*Id.* at p. 592.) Here, as Respondent argues, to allow Petitioner to bring an IIEI claim would allow her to circumvent the statute of limitations to bring a claim for invalidating the trust.

The demurrer is SUSTAINED as to the IIEI claim WITHOUT LEAVE TO AMEND.

iv. Buyout of Petitioner's Life Estate

The 2022 trust leaves Petitioner a life estate in the Dry Creek Property. In her Amended Petition, Petitioner seeks a buyout of her interest in the property. Respondent contends that this cause of action is subject to demurrer because the trustee must follow the terms of the trust. Petitioner contends that this cause of action requires consideration of factual and equitable concerns that cannot be adjudicated on demurrer. Because the court has authority to amend the trust provisions or otherwise grant equitable relief, the demurrer cannot be sustained on the ground that the trustee lacks authority to deviate from the terms of the trust. (See, e.g., Prob. Code, §§ 15409, 17200; *Schwan v. Permann* (2018) 28 Cal.App.5th 678, 697 [probate court has equitable power to modify trust to serve the intent and purpose of the trust].) The demurrer is OVERRULED as to the buyout of Petitioner's life estate cause of action.

v. Compensation for Caregiver Services

As to Petitioner's cause of action for compensation for caregiving services she allegedly performed for Decedent prior to his death, Respondent asserts that this cause of action must be raised in the estate case, 25PR199269, rather than the trust case, 23PR194562. Assuming without deciding that this argument falls within one of the statutory grounds for demurrer, (see § 430.10), the court rejects thus argument. In the context of a creditor's claim against a trust, " 'Claim' means a demand for payment for any of the following, whether due, not due, accrued or not accrued, or contingent, and whether liquidated or unliquidated: . . . Liability of the deceased settlor, whether arising in contract, tort, or otherwise." (Prob. Code, § 19000, subd. (a).) "Upon the death of a settlor, the property of the deceased settlor that was subject to the power of revocation at the time of the settlor's death is subject to the claims of creditors of the deceased settlor's probate estate and to the expenses of administration of the probate estate to the extent that the deceased settlor's probate estate is inadequate to satisfy those claims and expenses." (Prob. Code, § 19001, subd. (a).) Respondent argues that Petitioner has failed to comply with the probate creditor claims process but he does not indicate how she has failed to comply. (See *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [stating that the trial court is not required to "comb the record and the law for factual and legal support that a party has failed to identify or provide"].)

Finally, Respondent argues that the cause of action fails because Petitioner has failed to plead an agreement for payment for her services and failed to allege whether any contract was written or oral under section 430.10, subdivision (g). Section 430.10, subdivision (g) provides that a demurrer lies where, "[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." This argument is well taken. The demurrer is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND to allege the theory upon which Petitioner seeks compensation for caregiving services.

vi. Distribution of Pay On Death Account

Respondent contends that the cause of action for distribution of the pay on death account may not be raised in the trust case because the pay on death account is not a trust asset. He asserts that the Amended Petition admits that the pay on death account is not a trust asset. (Amended Petition, ¶¶ 17 ["At the time of Decedent's death, an E*Trade account existed in Decedent's name listing Petitioner as the payable-on-death (POD) beneficiary."] 66 ["Because the account is not part of the Trust, there is no legal justification for Respondents' refusal to release these funds."].)

Petitioner points out that the pay on death account cause of action also alleges that Respondent violated his fiduciary duty as trustee by failing to distribute the funds. (Amended Petition, ¶ 66 ["Respondents have unlawfully, and without justification have instructed E*Trade to withhold distribution of the funds, which total at least $909,841.46, to Petitioner. This constitutes a clear breach of their fiduciary duties to act in good faith and avoid self-dealing. (See *Hearst v. Ganzi* (2006) 145 Cal.App.4th 1195.)"].) Petitioner does not explain how the failure to distribute the pay on death account funds could constitute a breach of a trustee's fiduciary duty or how Respondent has a duty to pay out the funds in his capacity as trustee if the account is not a trust asset.

Notably, the Amended Petition cites two cases in support of the proposition that "a trustee or fiduciary" is required to distribute the funds in pay on death account upon the depositor's death. (Amended Petition, ¶ 65.) In the first case, *Araiza v. Younkin* (2010) 188 Cal.App.4th 1120,[3] the Court of Appeal held that a settlor properly changed the beneficiary on her Totten trust account via the execution of a trust listing the same account as a trust asset and naming a different person as a beneficiary to receive that account on the settlor's death.[4] In the second case, the Court of Appeal concluded that there were triable issues of material fact as to whether a Totten trust account had been created. (*Estate of Fisher*, *supra*, 198 Cal.App.3d at p. 425.) Both cases mention the general rule that the funds in pay on death accounts belong to the listed beneficiary upon the death of the depositor. (See *Araiza v. Younkin*, *supra*, 188 Cal.App.4th at pp. 1124-1125; *Estate of Fisher*, *supra*, 198 Cal.App.3d at p. 424; Prob. Code, § 5302.) But, neither holds that the trustee of a trust that does not hold the account as an asset is required to distribute the funds in the account to the beneficiary named on the account.

What is missing from the Amended Petition is any allegation connecting Respondent's actions in preventing Petitioner from receiving payment to his role as trustee. The court is unaware of any authority indicating that the trustee has a duty to distribute non-trust assets to beneficiaries or any authority indicating that failure to do so is a breach of fiduciary duty. In the absence of such pleaded facts or authority, the court agrees with Respondent that this claim is improperly raised in the trust case. Nonetheless, the court cannot find that Respondent's alleged interference with the distribution does not constitute a breach of fiduciary duty as a matter of law if Respondent used his role as trustee or otherwise acted in his capacity as trustee to prevent the distribution. Accordingly, the court will sustain the demurrer with leave to amend.

The demurrer is SUSTAINED as to the pay on death account claim WITH 20 DAYS' LEAVE TO AMEND.

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[3] The Amended Petition does not provide a pincite.

[4] "The term Totten trust describes a bank account opened by a depositor in his own name as trustee for another person where the depositor reserves the power to withdraw the funds during his lifetime. If the depositor has not revoked the trust then, upon his death, any balance left in the account is payable to the beneficiary. [Citations.] The name derives from the case of *In re Totten* (1904) 179 N.Y. 112 in which the court stated the rule subsequently followed in most jurisdictions." (*Estate of Fisher* (1988) 198 Cal.App.3d 418, 424.)

vii. Invalidation of Trust as Omitted Spouse

The Amended Petition asserts that the trust as amended is invalid and because the original trust did not provide for Petitioner, she seeks recognition as an omitted spouse pursuant to Probate Code section 21610.[5] Respondent contends that the statute of limitations bars a claim to invalidate the trust and that the prior version of the petition indicated that Petitioner sought an extension of the time in which to file a claim for trust invalidation. The Amended Petition does not contain this allegation and Respondent maintains that the deletion of that allegations is an attempt to avoid the statute of limitations, which must be rejected under the sham pleading doctrine.

Probate Code section 16061.8 provides

> A person upon whom the notification by the trustee is served pursuant to paragraph (1) of subdivision (a) of Section 16061.7, whether the notice is served on the person within or after the time period set forth in subdivision (f) of Section 16061.7, shall not bring an action to contest the trust more than 120 days from the date the notification by the trustee is served upon the person, or 60 days from the date on which a copy of the terms of the trust is delivered pursuant to Section 1215 to the person during that 120-day period, whichever is later.

In the original petition filed August 12, 2025 in docket 25PR200738, Petitioner alleged, "Petitioner has requested additional time to contest the trust past the 180 days allotted to contest the trust as granted by RYAN's memorandum and notification by trustee to review and assess the administration of the Trust and intends to file a creditor's claim for the unpaid personal services she rendered to Decedent during his lifetime." (Original Petition, ¶ 19.)

" 'A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.' [Citations.] It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred. [Citations.] This will not be the case unless the complaint alleges every fact which the

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[5] That section provides

> Except as provided in Section 21611, if a decedent fails to provide in a testamentary instrument for the decedent's surviving spouse who married the decedent after the execution of all of the decedent's testamentary instruments, the omitted spouse shall receive a share in the decedent's estate, consisting of the following property in said estate:
> (a) The one-half of the community property that belongs to the decedent under Section 100.
> (b) The one-half of the quasi-community property that belongs to the decedent under Section 101.
> (c) A share of the separate property of the decedent equal in value to that which the spouse would have received if the decedent had died without having executed a testamentary instrument, but in no event is the share to be more than one-half the value of the separate property in the estate.

(Prob. Code, § 21610.)

defendant would be required to prove if he were to plead the bar of the applicable statute of limitation as an affirmative defense. [Citation.]" (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.)

However, under the sham pleading doctrine, "admissions in an original complaint… remain within the court's cognizance and the alteration of such statements by amendment designed to conceal fundamental vulnerabilities in a plaintiff's case will not be accepted.'" (*Lockton v. O'Rourke* (2010) 184 Cal.App.4th 1051, 1061.) The purpose of the doctrine is to "enable the courts to prevent an abuse of process. [Citation.]" (*Hanh v. Mirda* (2007) 147 Cal.App.4th 740, 751.) "[W]here a party files an amended complaint and seeks to avoid the defects of a prior complaint either by omitting the facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings," the court may examine the prior complaint to ascertain whether the amended pleading is merely a sham. (*Owen, supra,* 198 Cal.App.3d at p. 384.)

Because paragraph 19 of the original petition does not state the date the trustee's notice or a copy of the trust were received by Petitioner, the court finds that even when paragraph 19 is considered, the court cannot determine that the trust invalidation claim is untimely from the face of the Amended Petition.

Respondent also argues that, during his lifetime, Decedent was the subject of a conservatorship in docket 22PR193873. In that case, Petitioner, Respondent, and the Public Guardian on behalf of Decedent entered into a stipulation and order involving Decedent's estate plan. In that stipulation and order, the parties agreed to void an estate plan created for Decedent in December 2022 by the firm Wong & Associates and reinstate the 2022 version of the trust and other documents drafted in February 2022 by Decedent's estate planning attorneys at Dean Jones, LLP. (Respondent's Request for Judicial Notice, Ex. 1 [Stipulation and Order], pp. 2:21-5:9.) Petitioner is now seeking to invalidate the 2022 trust via this cause of action. Respondent contends that she is judicially estopped from doing so.

"The doctrine of judicial estoppel … is invoked to prevent a party from changing its position over the course of judicial proceedings when such positional changes have an adverse impact on the judicial process. … Judicial estoppel is 'intended to protect against a litigant playing fast and loose with the courts. [Citation.]" (*Filtzer v. Ernst* (2022) 79 Cal.App.5th 579, 588, internal quotation marks omitted.) The burden of establishing that judicial estoppel applies is on Respondent as the party invoking it. (*Ibid*.)

"The doctrine applies when (1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake." (*Blix Street Records, Inc. v. Cassidy* (2010) 191 Cal.App.4th 39, 47, internal citations and quotation marks omitted.) Judicial estoppel is an extraordinary remedy to be invoked only when a party's inconsistent behavior will result in a miscarriage of justice. (*Ibid*.)

Respondent has not attempted to grapple with the above elements and the stipulation. The stipulation states, "the Trust . . . [is] reinstated and shall continue in full force and effect." Thus, while recognizing that the February 2022 estate plan is in effect, the stipulation does not